Maryland MSDE Responsible Use of AI Tools Policy: Data and Student Privacy Passages

Excerpted verbatim from *Policy: Responsible Use of Artificial Intelligence Tools (Maryland State Department of Education, Information Technology Branch, August 2025; copy hosted by state-ai-policy-field-guide)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. This is an internal policy for MSDE staff, contractors and partners rather than for school districts.

Purpose (excerpt)

Source: page 4

This policy outlines the MSDE's approach to the secure, legal, fair, and accountable procurement and use of AI systems. Our goal is to leverage AI to enhance our work while protecting students, staff, and the public from unnecessary risks. This policy applies to all MSDE employees, contractors, and partners who use AI systems with MSDE data or on MSDE systems.

Use of AI Systems within MSDE (excerpt)

Source: page 5

All use of AI systems in MSDE or adoption of AI features in existing tools must be reviewed and approved by both MSDE and DoIT. MSDE will periodically review and affirm the security, privacy, and accessibility of these systems in accordance with applicable state and agency IT policies..

DoIT approval does not constitute MSDE authorization. MSDE IT must evaluate specific use cases and data handling requirements separately. Significant changes to approved use cases require additional review.

Use of Generative AI Systems (excerpt)

Source: page 5

Staff may only use AI systems approved through MSDE and DoIT processes for agency operations; this prohibition includes tools that may be free, open source, or provided by a partner.

Please note: creating an account on an online tool with your Maryland.gov account and/or purchasing a tool on a credit card without going through the approval process does not make that tool an approved tool, a tool provided by MSDE or Maryland, or a permitted platform. These tools are unapproved and prohibited regardless of whether AI is in use.

Customized Tools (excerpt)

Source: page 6

Any unit considering developing or procuring an AI chat bot, a tool for specific business process support, or similar to be trained on your department's data, must consult with MSDE IT. … Consultation with IT will ensure that your project proceeds with proper support and considerations for an effective outcome that also protects MSDE and resident data.

AI Notetaking and Summarization (excerpt)

Source: pages 6–7

- Some meeting content is confidential, and it is not appropriate to use a summarization tool
- While transcription and automated notetaking are not considered “recording” by Maryland law, others may be uncomfortable with this use and should be considered

It is acceptable to use the native AI systems available from your Maryland online meeting accounts within Microsoft Teams (CoPilot), and Google Meet (Gemini) when logged into your Maryland.gov account. Both Google and Microsoft have multiple tools available under the CoPilot and Gemini names – only those within the Maryland online environment and desktop applications may be used.

Other tools for meeting notes (such as otter.ai, Fireflies.ai, Fathom, tl;dv), and tools embedded in programs like Notion are not permitted. MSDE data cannot be stored outside MSDE/Maryland systems.

Examples: Permitted (excerpt)

Source: page 7

- Drafting reports, summaries, or non-confidential content
- Analyzing public or aggregated data
- To analyze non-public data, additional review will be needed on the tool and it’s approved use, including assuring the appropriate protection of the data

Prohibited (excerpt)

Source: page 8

- Using data in ways not approved or in violation of data sharing agreements or the terms of use of any given data collection system
- Using any protected or restricted data without specific approval to use it with the particular AI system.
- Using any unapproved tool for MSDE work.

PROTECTED, RESTRICTED, OR PERSONALLY IDENTIFYABLE DATA

Source: pages 8–9

Complete a Privacy Impact Assessment before using AI with these data. Prefer aggregated or de-identified data, include AI clauses in contracts, and never train AI with student data unless approved.

Please follow the MSDE and DoIT Data Classification Policies

Incident Response

Source: page 9

If AI causes an issue, such as a data breach, publication of biased or inaccurate content, or a system failure, staff must immediately:

- Stop using the tool.

- Report the incident to the appropriate IT Partner and the MSDE CISO
- Assist with containing and investigating the issue.
- Support remediation efforts and ensure all actions are documented.

Security Standards Alignment

Source: page 9

All AI systems must align with Maryland (DoIT) and MSDE Security policies.